



CHAPTER xlii.

An Act to authorise the Southampton Gaslight and Coke Company to raise additional capital and for other purposes. A.D. 1906.
[20th July 1906.]

WHEREAS the Southampton Gaslight and Coke Company (in this Act called "the Company") was incorporated by the Southampton Gas Act 1848 for the purpose of supplying gas within the limits defined in that Act:

And whereas the Company's limits for the supply of gas have been extended and their powers have been enlarged by—

The Southampton Gas Act 1865 ;
The Southampton Gas Act 1876 ; and
The Southampton Gas Act 1898 ;

and they are now supplying gas under the powers conferred by the above-mentioned Acts all of which are in this Act referred to collectively as "the recited Acts":

And whereas the capital of the Company entitled to dividend consists of three hundred and forty-four thousand pounds (344000*l.*) consolidated fully paid stock bearing a uniform maximum rate of dividend of five pounds per centum per annum and two hundred thousand pounds (200000*l.*) ordinary capital entitled to dividend not exceeding the rate of five pounds per centum per annum and the Company have issued including premiums the whole amount thereof:

And whereas the Company have under the powers of the recited Acts borrowed in respect of their said consolidated stock the sum of seventy thousand eight hundred and twenty-five pounds (70825*l.*) bearing interest at the rate of four pounds per centum

A.D. 1906. — per annum and in respect of their ordinary capital fifty thousand pounds (50000*l.*) being the total amount authorised to be borrowed in respect of such ordinary capital :

And whereas the consumption of gas within the Company's limits of supply has very largely increased and is still rapidly increasing and it is expedient that the Company should be enabled to enlarge and extend their works for the purposes of their undertaking and for that purpose should be authorised to raise three hundred and fifty thousand pounds additional capital by the creation and issue of shares or stock and to borrow further moneys upon mortgage :

And whereas it is expedient that the Company should be authorised to erect additional works for the manufacture of gas on the lands belonging to them and herein-after described :

And whereas it is expedient to amend the Southampton Gas Acts 1876 and 1898 to the extent and in the manner herein-after provided :

And whereas it is expedient that further powers be conferred on the Company as herein-after provided :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title. **1.** This Act may be cited as the Southampton Gas Act 1906 and the recited Acts and this Act may for all purposes be cited together as the Southampton Gas Acts 1848 to 1906.

Incorporation of Acts. **2.** The following Acts and parts of Acts are (save where expressly varied or excepted by or inconsistent with this Act) incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) :

The Gasworks Clauses Acts 1847 and 1871 :

The provisions of the Companies Clauses Consolidation Act A.D. 1906.
1845 with respect to—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The borrowing of money by the Company on mortgage or bond ;

The remedies of creditors of the Company against the shareholders ;

The consolidation of the shares into stock ;

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares) and Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act unless the context otherwise requires the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act have the same respective meanings. Interpretation.

The Acts of 1865 1876 and 1898 mean the Southampton Gas Act 1865 the Southampton Gas Act 1876 and the Southampton Gas Act 1898 respectively.

“The corporation” means the mayor aldermen and burgesses of the county borough of Southampton.

“The borough” means the county borough of Southampton.

CAPITAL.

4. The Company may from time to time raise additional capital not exceeding in the whole three hundred and fifty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or any stock vest in the person or corporation Additional capital.

A.D. 1906. — accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided always that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of three hundred and fifty thousand pounds. Provided also that not more than one hundred and seventy-five thousand pounds of such capital shall be issued as preference capital.

New shares or stock to form part of capital of Company.

5. The additional capital in new shares or stock so created shall form part of the capital of the Company.

New shares or stock to be subject to same incidents as other shares or stock.

6. Subject to the provisions of this Act and any resolution of the Company creating any new capital in shares or stock under this Act any capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

REGULATIONS AS TO ISSUE OF CAPITAL.

New shares or stock to be offered by auction or tender.

7. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holders of any other shares or stock in the Company and whether the ordinary shares or ordinary stock are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock at the first offer thereof shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no

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priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock in the Company may be accepted in preference and preference may in like manner be given to any gas consumer whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

8. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase money of capital sold to be paid within three months.

9. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk of the borough to the clerk to the district council of any district wholly or partly included in the limits of supply of the Company and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the borough.

Notice to be given as to sale of shares or stock.

10.—(1) When any shares or stock in the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of preference or ordinary shares or stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

Disposal of shares or stock not sold by auction or tender

(2) Any shares or stock not so disposed of or so offered and not accepted and in the case of shares or stock offered to the holders of shares or stock within the time prescribed by the said Act or in the case of stock or shares offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock in the additional capital created under

A.D. 1906. the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of preference or ordinary shares or stock or to such employees or consumers at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Application
of premium
arising on
issue of
shares or
stock.

11. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom (if the Company think fit) the expenses of and incident to such issue shall not be dealt with and treated as profits of the Company but shall be applied to the general purposes of the Company to which capital is properly applicable but shall not be entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create a reserve fund a renewal fund or an insurance fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

BORROWING POWERS.

Power to
borrow.

12. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock together with the premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Existing
mortgages
to have
priority.

13. All mortgages granted by the Company in pursuance of the Act of 1898 and subsisting at the passing of this Act shall during the continuance thereof and subject to the provisions of

the Act of 1898 have priority over all mortgages granted in pursuance of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. A.D. 1906.

14. Section 37 of the Act of 1898 (For appointment of receiver) is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act and in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. Appointment of receiver.

15. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 34 of the Act of 1898. Debenture stock.

16. All money to be raised by the Company on mortgage or by the issue of debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock. Priority of mortgages and debenture stock over other debts.

17. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

18. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable. Application of money.

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LIMITATION OF PROFITS.

Profits of
Company on
additional
capital
limited.

19. The Company shall not in any half-year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than five pounds per centum per annum in respect of such capital as shall be issued as ordinary capital and as shall be actually paid up unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of five pounds per centum per annum or than four pounds per centum per annum in respect of such capital as shall be issued as preference capital and as shall be actually paid up.

Dividend on
new shares
or stock.

20. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

RESERVE FUND.

Amount of
reserve fund.

21. The prescribed sum for the purpose of section 31 of the Gasworks Clauses Act 1847 shall in respect only of the additional capital by this Act authorised to be raised be one-tenth of the amount of such additional capital from time to time raised by the Company and paid up.

Application
of excess of
profits.

22. If the clear profits of the undertaking of the Company in any half-year amount to a larger sum than is sufficient to pay the dividend on the preference capital if any and dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the reserve fund shall be carried to the credit of the divisible profits of the undertaking for the next following half-year.

MISCELLANEOUS.

Powers as to
construction
and main-
tenance of
gasworks &c.

23. Subject to the provisions of this Act the Company may upon the lands delineated on the plan deposited in respect of this Act with the clerk of the peace for the county of Southampton and described in the schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue additional gasworks retorts gasometers receivers drains sewers mains pipes

meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of supply of the Company and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas. A.D. 1906.

24. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street road footway or pavement such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay pipes in streets not dedicated to public use.

25. Except in case of emergency before any street or road in the borough not dedicated to public use or any street in the borough dedicated to the public use but not repairable by the corporation shall be broken up the Company shall submit to the corporation for their approval the plan referred to in section 9 of the Gasworks Clauses Act 1847 and such street or road shall only be broken up in accordance with the plan approved by the corporation or in case of difference arising with reference to the plan submitted as aforesaid in accordance with such plan as may be settled by an engineer to be agreed on between the corporation and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party. Laying mains in private streets in borough.

26. In executing any works and exercising the powers of the Company so far as they affect any street in the borough or any bridge in the borough belonging to or repairable by the corporation the following provisions for the protection of the corporation shall have effect (that is to say) :— For protection of corporation.

- (1) All pipes to be laid in or along any street or in upon or across any bridge shall be laid in such position in or at the side thereof (provided the metalling on or over such

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side be sufficient and of sufficient depth to effectually protect such pipes) as the corporation in writing under the hand of their surveyor may reasonably direct :

- (2) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking-up of streets for the purpose of laying pipes the notice required by the 8th section of that Act shall be not less than seven days instead of three days but this shall not apply to cases of emergency :
- (3) The plan required by the 9th section of the last mentioned Act shall be accompanied by a description of the proposed works and shall be delivered to the corporation or their surveyor by the Company not less than fourteen days before they commence to open or break up any street or interfere with any bridge for the purpose of executing the works :
- (4) Nothing in this Act shall authorise the Company to interfere with the structural part of any bridge without the consent in writing of the corporation which consent shall not be unreasonably withheld and may be given upon such conditions as the corporation may reasonably determine :
- (5) Nothing in the recited Acts or this Act contained shall interfere with the right of the corporation to alter the level of deviate or improve in any manner they think fit any street in or along which any pipes of the Company shall have been laid and the Company shall on the expiration of fourteen days after receiving notice in writing under the hand of the town clerk or surveyor to the corporation so to do proceed to alter the position of any such pipes in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the expenses of any such alteration deviation or improvement shall be paid to the Company by the corporation :
- (6) Nothing in this Act contained shall interfere with the right of the corporation at any time or times to remove alter or rebuild any bridge or the approaches thereto over near or attached to which any pipes of the Company are carried in the same manner as they

might have removed altered or rebuilt such bridge or the approaches thereto if this Act had not been passed and such pipes had not been laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such pipes are laid being removed altered or rebuilt as aforesaid the Company shall at their own costs in all things alter the position of such pipes and any works by which the same are carried over or near or attached to such bridge or the approaches thereto as aforesaid. Provided that the corporation shall afford all reasonable facilities to the Company for such alteration. Provided also that during the removal alteration or rebuilding of such bridge or the approaches thereto as aforesaid the corporation shall at their own expense afford all reasonable facilities for temporarily carrying such pipes across the stream river or other place over which such bridge is carried so as not to interrupt the continual supply of gas or to diminish the pressure of such supply through such pipes :

- (7) All works of the Company so far as they affect any streets or bridges shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any street or over any bridge or the approaches thereto :
- (8) If any difference arise at any time between the corporation and the Company touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by an engineer to be agreed on between the corporation and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party :
- (9) The Corporation shall not be liable for or in respect of any damage or injury done to any work of the Company by reason of such work being laid at a depth below the surface of any street insufficient for its protection from injury arising from the use of any steam or other

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roller for the repair of such street or from the passage of the traffic in such street or by reason of the non-repair of any bridge or the approaches thereto :

(10) Nothing in this section contained shall extend affect or apply to any existing work or pipes of the Company.

Relieving
Company of
liability for
forfeiture for
sulphur com-
pounds other
than sul-
phuretted
hydrogen.

27. From and after the passing of this Act the Company shall not be liable to any forfeiture by reason of the presence in the gas supplied by them of sulphur compounds other than sulphuretted hydrogen and section 44 of the Act of 1898 is hereby repealed.

Pressure of
gas.

28. As from the date of the passing of this Act section 7 of the Act of 1876 shall be read and construed for all purposes as if the words "eight-tenths of an inch" were substituted therein for "six-tenths of an inch" and the words "ten-tenths of an inch" were substituted therein for "eight-tenths of an inch."

Power to
supply gas
fittings &c.
for heating
and other
purposes and
fittings not
to be subject
to distress.

29.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas con-
sumers to
give notice
to Company
before re-
moving.

30. Twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such

supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent. A.D. 1906.
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31. The Company may upon any lands for the time being belonging or leased to them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Company for the purposes of their undertaking. Dwelling-houses for workmen.

32. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands which they are authorised to take acquire and hold under the recited Acts any lands and hereditaments not exceeding in the whole ten acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no such lands shall be used by the Company for the purpose of manufacturing gas or residual products. Power to purchase lands by agreement.

33. All costs charges and expenses of and incident to the preparing for obtaining and passing this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1906. The SCHEDULE referred to in the foregoing Act.

LANDS ON WHICH THE COMPANY MAY ERECT ADDITIONAL
WORKS FOR THE MANUFACTURE OF GAS AND RESIDUAL PRODUCTS
AND STORE GAS.

Land in the parish of Eastleigh in the urban district of Eastleigh and Bishopstoke in the county of Southampton 1 acre or thereabouts in extent bounded on the west by North End Lane and on the north south and east by the farm known as Eastleigh Farm and forming part of the fields or inclosures numbered 47 and 82 on the $\frac{1}{2500}$ Ordnance map (second edition 1896) for the said parish of Eastleigh.

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